

THE COMPANIES ACT, 1956

COMPANY LIMITED BY SHARES

MEMORANDUM OF ASSOCIATION

OF

MINDTECK (INDIA) LIMITED

- I. The name of the Company is MINDTECK (INDIA) LIMITED.
- II. The Registered Office of the Company will be situated in the State of Karnataka.
- III. The objects for which the Company is established are:

(A) MAIN OBJECTS OF THE COMPANY TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION:-

- 1. To design develop, manufacture, sell, lease, repair, service, import, export and otherwise deal in systems incorporating computers, computer peripherals, modules, instruments, data communication products, hardware and software products. To carry on the business as consultants in computers, computer oriented systems, automatic test systems, all branches of computer science, civil, electrical, electronic, mechanical, chemical, optical, metallurgical and all other branches of engineering and to export technical know-how, services and equipments relating to the above.

(B) OBJECTS INCIDENTAL OR ANCILLARY TO THE ATTAINMENT THE MAIN OBJECTS:-

- 1. To enter into contracts agreements and arrangements with any other company for the carrying out by such other company, on behalf of the company, of the objects for which the company is formed.
- 2. To manufacture, buy, alter, improve and otherwise deal in all kinds of spare parts, plant, machinery, apparatus, tools, necessary or convenient for carrying on the business or processes the company.
- 3. To repair, alter, clean, and resell any goods from time to time belonging to the company.
- 4. To employ experts to investigate and examine into the conditions, prospects, value, character and circumstances of business concerns and undertaking and of any assets, property or rights
- 5. To carry on business or branch of a business which this Company is authorised to carry on by means of, or through the agency of any subsidiary company or companies, and to enter into any arrangement with such subsidiary company for taking the profits and bearing the losses of any business or branch so carried on, or for financing and such subsidiary company or guaranteeing its liabilities, or to make any other arrangement which may seem desirable with reference to any business or branch so carries including power at any time and either temporarily or permanently to close any branch or business.
- 6. To nominate Directors or Managers or other staff of any subsidiary company or of any other company in which this company is or may be interested.
- 7. To take part in the management, supervision and control of the business or the business or operations of any company or undertaking having similar objects .
- 8. For the purpose mentioned in the proceeding clause to appoint and remunerate any Directors, Managers or other staff, trustees, accountants or other experts or

agents.

9. To purchase, take on lease or in exchange, hire or otherwise acquire any immoveable or moveable property and any rights, or privileges which the Company may think necessary or convenient for the purposes of its business and in particular, any land, buildings, easements, machinery, plant and stock-in-trade; and either to retain any property to be acquired for the purpose of the Company's business or to turn the same to account as may seem expedient.
10. To construct, improve, develop, work, manage, carry out any buildings, factories or works, or any roads, ways sidings, bridges, wells, reservoirs, water-courses, wharves, ware-houses electric works Shops, stores, chawls, and other buildings, for housing work-people or other works and conveniences and to contribute to subsidise or otherwise assist or take part in the construction, improvement, maintenance, development, working, management, carrying out thereof.
11. To let on lease or on hire purchase system or to lend or otherwise dispose of any property belonging to the Company, and to finance the purchase of any article or articles, whether made by the company or not, by way of loans or by the purchase of any such article or articles, and the letting thereof on the hire-purchase system or otherwise howsoever.
12. To sell, lease, grant licences, easements and other rights, over and in any other manner deal with or dispose of, the undertaking, property, assets, rights and effects of the Company, or any part thereof, for such consideration as the company may think fit, and in particular for shares, debentures, or securities of any other company.
13. To acquire and undertake the whole or any part of the assets and liabilities of any persons or company carrying on or proposing to carry on business which the Company is authorised to carry on, or which can be carried on in conjunction therewith.
14. To amalgamate, or partially amalgamate with or acquire interest in the business of any other Company, person or firm carrying on or engaged in, or about to carry on or engage in any business or transaction included in the objects of the Company, or enter into any arrangement for sharing profits, or co-operation, or for limiting competition or for mutual assistance, with any such person, firm or company.
15. To establish or promote or concur in establishing or promoting any company or companies having similar objects for the purpose of acquiring all or any of the property, rights and liabilities of the Company or for any other purpose of the Company and to place or guarantee the placing of, underwrite, subscribe for or otherwise, acquire all or any part of the shares, debentures or other securities of any such other Company.
16. To enter into partnership, or into any arrangement for sharing profits or losses, or for any union of interests, joint venture, reciprocal concession or co-operation with any person or persons, or company or companies carrying on, or engaged in or about to carry on, or engage in, or being authorised to carry on, or engage in, business or transaction which this Company is authorised to carry on or engage in.
17. To acquire by purchase, subscription or otherwise, and to receive, hold, own, guarantee, sell, assign, exchange, transfer, mortgage, pledge or otherwise dispose of or deal in and with any of the shares of the capital stock, or any voting, trust, certificates in respect of the shares of capital stock, scrip, warrants, rights, bonds, debentures, notes, trust, receipts, and other securities, obligations, choses in action and evidences of indebtedness or interest issues or created by any corporations, firms, trusts or persons, public or private, or by the Government of India or by any foreign government, or by any State, territory, province, municipality or other political sub-division or by any governmental agency, and as owner thereof to possess and exercise all the rights, powers and privileges of ownership, including the right to execute consents and vote thereon, and to do any all acts and things necessary or advisable for the preservation, protection, improvement and enhancement in value thereof.
18. To lend and advance money or to give credit to such persons or companies and on such terms as may seem expedient and in particular to customers and others having

dealings with the Company and to guarantee the performance of any contract or obligation and the payment of money of or by any such persons or companies to give guarantees and indemnities.

19. To invest and deal with surplus monies of the Company in such manner as may from to time be determined subject to provisions of the Act.
20. To enter into any arrangement with Government or authority supreme, municipal, local or otherwise, or any person or company that may seem conducive to the company's objects or any of them and to obtain from any such Government, authority, person or company any rights, privileges, charters contracts, licences and concessions which may Company may think fit, desirable to obtain and to carry out exercise, and comply therewith.
21. To apply for, promote and obtain any act, charter, privilege, concession, licence, authorisation, if any, Government State or Municipality provisional order or licence of any authority for enabling the Company to carry any of its objects into effect, or for extending any of the powers of the Company or for effecting any modification of the Company's constitution, or for any other purpose which may seem expedient and to oppose and proceedings or applications which may seem calculated, directly or indirectly to prejudice the Company's interests.
22. To apply for, purchase or otherwise acquire, and protect and renew in any part of the world any patents, patents-rights, brevets invention, trade-marks, designs, licences, concessions and the like conferring any exclusive or non-exclusive or limited right to their use, or any secret or other information as to any invention which may seem capable of being used for any of the purpose of the Company and to use, exercise, develop or grant licences in respect of or otherwise turn to account the property, rights, or information so acquires, and to expend money in experimenting upon, testing or improving any such patents, inventions, or rights.
23. To establish, provide, maintain and conduct, or otherwise subsidise research laboratories and experimental workshops for scientific and technical research and experiments and to undertake and carry on with all scientific and technical researches, experiments and tests of all kinds and to promote studies and research, both scientific and technical investigation and invention by providing, subsidising endowing or assisting laboratories, workshops, libraries, lectures, meetings and conferences and by providing for the remuneration of scientific or technical professors or teachers and by providing for the award of scholarships, prizes and grants to students or otherwise and generally to encourage promote and reward studies, researches, investigations, experiments, tests and inventions of any kind that may be considered likely to assist any of the business which the company is authorised to carry on.
24. To make donations to such persons or institutions and in such cases either in cash or any other assets as may be thought directly or indirectly conducive to any of the Company's objects or otherwise expedient and in particular to remunerate any person or corporation introducing business to this Company, and also to subscribe contribute, or otherwise assist or guarantee money for charitable, scientific, religious or benevolent, national public, other institutions, objects or for any exhibition or for any public, objects and to establish and support or aid in the establishment and support of associations, institutions, funds, trusts and convenience for the benefit of the employees or ex-employees (including Directors) of the Company or its predecessors in business or of persons having dealings with the Company or the dependents, relatives or connection of such persons and in particular friendly or other benefit societies and to grant pensions, allowances, gratuities and bonus either by way of annual payments or a jump sum and to make payments towards insurance and to form and contribute to provident and benefit funds of or for such persons.
25. To refer or agree to refer any claim, demand, dispute or any other question, by or against the Company, or in which the Company is interested or concerned, and whether between the Company and the member or members or his or their

representatives, or between the Company and third parties, to arbitration in India or at any place outside India, and to observe and perform and to do all acts, deeds, matters and things to carry out or enforce the awards.

26. To pay out of the funds of Company all expenses which the Company may lawfully pay with respect to the promotion formation and registration of the Company or the issue of its capital including brokerage and commission for obtaining applications for or taking, or procuring the underwriting of shares, debentures or other securities of the Company.
27. To pay all preliminary expenses of any Company promoted by the Company or any company in which the Company is or may contemplate being interested, including in such preliminary expenses all or any part of the costs and expenses of owners of any business or property acquired by the Company.
28. To pay for any rights or property acquired by the Company and to remunerate any person or company for services rendered or to be rendered in placing of shares in the Company's capital or any debentures, debenture-stock, or other securities of the company, or in or about the formation or promotion of the Company, or the acquisition of property by the company or the conduct of its business whether by cash payment or by the allotment of shares, debentures, or other securities of the Company, credited as paid up in full or in part or otherwise.
29. To adopt such means of making known the business of the Company as may seem expedient, and in particular by advertising in the press, by circulars, by purchase and exhibition of works of art or interest by publication of books and periodicals, and by granting prizes, rewards and donations.
30. To receive money on deposit or loan and borrow or raise money in such manner as the Company shall think fit and in particular by the issue of debentures, or debenture-stock (perpetual or otherwise) and to secure the payment of any money borrowed, raised or owing by mortgage, charge or lien upon all or any of the property or assets of the Company (both present and future) including its uncalled capital, and also by a similar mortgage, charge or lien to secure and guarantee the performance by the Company or any other person or company of any obligation undertaken by the Company or any person or company as the case may be subject to the provision of section 58A and Directives of Reserve Bank of India.
31. To undertake and execute any trusts the undertaking of which may seem to the Company desirable either gratuitously or otherwise.
32. To draw, make, accept, endorse, discount, execute and issue bills of exchange, promissory notes, bills lading, warrants, debentures and other negotiable or transferable instruments of securities.
33. To sell, improve, manage, develop, exchange, lease, mortgage, dispose of, turn to account or otherwise deal with all or any part of the property and rights of the Company for the time being.
34. Subject to the provisions of the Companies ACT, 1956, to distribute among the members in specie any property of the company, or any proceeds of sale or disposal of any property of the company in the event of winding up.
35. To insure the whole or any part of the property of the Company either fully or partially, to protect and indemnify the Company from liability or loss in any respect either fully or partially and also to insure and to protect and indemnify any part or portion thereof either on mutual principal or otherwise.
36. To carry out in any part of the world all or any part of the Company's objects as principals, agents, factory trustee, contractor, or otherwise, either alone or in conjunction with any other person, firm, association, corporate body, municipality, province, state, body politic or government or colony, or dependency thereof.
37. To exercise all or any of its corporate powers, rights and privileges and to conduct its business in all or any of its branches in the Union of India and in any of all

states territories, possessions, colonies and dependencies thereof and in any or all foreign countries, and for this purpose to have and maintain and to discontinue such number of offices and agencies therein as may be convenient

38. To procure the Company to be registered or recognised in any part of the world, and

(C) OTHER OBJECTS:

39. To carry on the business of import, export, all merchandise and to act as agents, stockists, distributors for firms and companies in India and abroad and to obtain recognition as an export house.
- 40 To act as Chief Agents or Agents for any Fire Accident indemnity and General Insurance Company and, especially, in relation to all assets, persons or entities, including motor vehicles and motorists and to grant or effect assurances against or upon the contingency of injury, damage or loss by reason of any accident.
- 41 To carry on the business of civil, mechanical electrical, agricultural, automobile and electronic engineers and manufacturers of engineering goods, automobile equipments and components, electronic equipments and component needed for all industries.
- 42 To manufacture, buy, sell, import, export and stock all kinds of materials and stores needed by industrial and engineering units such as the automobile industry, structural engineers, fabricators, foundries and textile mills.
- 43 To carry on the business of hotel, restaurant, café tavern, motel, caterers and lodging, houses keepers, wine, beer and spirit merchants.
- 44 To carry on business of travel agents for railways shipping, airways, road transport corporation, companies or bodies and carries by land, water and air, barge owners, shipping freight contractors, forwarding agents, clearing agents stevedores, shiphandlers, carriers, underwrites and insurer of ships, crafts, goods and other property.
- 45 To manufacture and deal in all chemicals and its products such as dyes medicines petroleum and its products and derivatives paints, pigments and varnishes, oils products and derivatives or heavy chemicals, such as sulphuric acid, soda and soda ash, soaps cosmetics, perfumes and toilet requisites phosphorous products, waxes and their products.
- 46 To carry on the business of dealers in textile goods fabrics, perfumery, silk and woollen garment, hosiery and silk yarn.
- 47 To carry on all or any of the business of drapers, cloth dealers, hosiery, haberdasher, importers and retail dealers of textile fabrics.
- 48 To carry on the business of goldsmiths, silversmiths and jewellers.
- 49 To acquire, lease or lend sophisticated office machineries such as computers, tabulators, equipments, addressing machines and other office equipments and leasing or lending such equipments for providing services of these machines to various clients.
- 50 To carry on the business of purchase and sale of petroleum and petroleum products, to act as dealers and distributors for petroleum companies, to run service station for the repair and servicing of automobiles.
- 51 To manufacture, buy, sell, import and deal in all types of P.V.C. plastic celluloid plastic goods, polyurethane and its products, particularly plastic cables, wires pipes, sheets, beltings, toys, household goods, and industrial requisites.
- 52 To buy or otherwise acquire, sell and deal in ranches, sheep farms, agricultural lands and other farms.

- 53 To carry on the business of cow keepers, farmers, millers market gardens, cattle rearers, sheep farmers, poultry mushroom growers and florists.
- 54 To carry on the business of exporters and dealers of meat, livestock, sheep, hides, leather products and in all branches of such trades of business.
- 55 To carry on the business as producers and dealers in all kinds of dairy products, farms and garden product of all kinds, in particular, milk, cheese, cream, poultry, eggs, fruits wheat and all kinds of cereals.
- 56 To manufacture import and export, buy, sell and deal in condensed milk, baby foods, jams jellies, marmalade pickle and preserved frozen foods of all kinds.
- 57 To carry on the business of Manufactures and dealers in all kinds of tea, cocoa, coffee, ice cream and the operation of cold storages.
- 58 To purchase, sell or hire out or sell on hire purchase system, all kinds of motor vehicles, motor cycles, sewing machines, music equipment, refrigerators, televisions, air-conditioners and other domestic appliances.
- 59 To carry on the business of steam, and general laundry and to wash clean purify, scour, bleach, colour, dye renovate and prepare or use all articles of wearing appeal, domestic and other cotton silk and woollen fabrics carpets of all kinds.
- 60 To carry on the business of fishing including Deep sea backwater fishing and to act as dealers, exporters and agents in all kind of fish and sea foods.
- 61 To carry on the business of manufacturers of and dealers in ice-cream and to build manage, run or control, give and take on lease ice-cream factories and manufacture and deal in machineries thereof.
- 62 To carry on the business of interior and exterior decorators, furnishers and furniture manufacturers.
- 63 To manufacture, purchase, sell, import, export or otherwise deal in all types of metallic toys, mechanical and electrical toys, plastic and wooden toys.
- 64 To carry on business as manufactures of and dealers in plywood, hardwood blocks for flooring and other purposes laminates sheets, sleepers wholly or partly made from wood bricks, cement or stone.
- 65 To carry on business as manufacturers, producers, processors, exporters, importers, retailers and dealers in all kinds of carpet including hand made and machine made, tufted, brussels, chamile velvet namda, carpets, underlays, druggets duries, ruges, mattings, floor covering and furnishing fabrics made wholly or partly or any one or more of the following materials namely, wool, hair, silk, cute, fiock, yarn, spun stapples coir cotton natural and other synthetic or man made fibres.
- 66 To manufacture produce prepare, press, vulcanize, repair retread, export, import, purchase, sell and generally to carry on business in tyres and semi-tyres for different types of vehicles including buses, Omnibuses, trucks, lorries, automobiles, motor-cycles, cycles, tractors, aeroplanes, and also industrial tyres inner tubes, flaps miscellaneous repair materials and other articles and appliances made with or from natural or synthetic rubber, its compounds, substance derivatives and substances, India rubber, or the same in combination with any metallic or non-metallic substances, vulcanite leather, rayon hessian or plastic or products in which rubber, rayon, hessian or plastic is/or are used.
- 67 To carry on the business of manufacturers, purchasers sellers importers, exporters, and/or otherwise deal in all types of storage batteries, dry batteries, battery plates, battery separators, battery containers cells, lids and battery components.
- 68 To carry on the business of manufacturers of and/or dealers in radios, transistors, television sets wireless instruments and devices tape recorders, recordplayers, loudspeakers, amplifiers, gramaphones, recorders, videovision, phonovision and

other musical systems.

- 69 To prepare manufacture, market, trade export all types of bakery products and confectionery items.
- 70 To carry on the business of tea buyers and tea brokers in India or elsewhere.
- 71 To carry on the business as manufacturers of and dealers in pulp, board, papers of all kinds, and articles in which pulp paper or straw board is used.
- 72 To carry on the business of chemists, druggists, importers and manufacturers of and dealers in pharmaceutical, medical chemical, industrial and other preparations and articles.
- 73 To carry on in India or any part of the world, all kinds of business relating to fertilizers, heavy chemicals heavy water and their by-products, all organic and inorganic chemical compounds, including by-products, derivatives and mixtures thereof.
- 74 To manufacture, wave, process, buy and sell all kinds of plastic and plastic liners, sacks of high and low density polythylene, pipe, sheets, toys and wares and other types of plastic goods and products, synthetic resins and compounds, ancillary and auxillary materials and derivatives, intermediates and composition.
- 75 To carry on the business of manufacturers moulders extruders, processors assemblers, fabricators of nuts, bolts and other industrial fasteners.
- 76 To purchase sell, import, export, manufacture, treat and finish all types of skins, leather and hides and deal in all types of leather goods.
- 77 To purchase and sell for any person, freehold or other house property, buildings or lands or any share or shares and to transact on commission or otherwise the general business of a land Agent.
- 78 To manufacture produce, purchase, sell and otherwise deal in acidic, basic neural, refractories and all chemical formulations, organic and inorganic descriptions and categories and in all by-products and allied products.
- 79 To manufacture, import, export, buy, sell assemble, distribute, hire or otherwise deal in all kinds of Electronic Computers, Data Machine and software.
- 80 To carry on the business of manufacturers, importers, exporters, wholesale and retail dealers in men's women's and children's clothing and wearing apparel of every kind nature and description.
- 81 To undertake or direct the construction and management of property, building, lands and estates of any tenure or kind.
- 82 To engage in coastal and international shipping in India or any part of the world.
- 83 To carry on and undertake the business of leasing and hire purchase finance and to finance lease operations such as hiring, letting on hire equipments, plant and machinery and to assist finance of hire purchase or deferred payments or to subsidise finance or assist in subsidising or financing the sale and maintenance of goods or commodities upon term and conditions and to undertake leasing finance for immovable and movable properties including lands and buildings, plant and machinery, equipments and vehicles such as automobiles, ships aircrafts, computers , commercial and industrial equipments and to lease and deal with them including sale and re-sale thereof.
- 84 To carry on business of leasing and financing services advisory and counselling services, and to undertake venture capital and portfolio investment for purchase or take on lease or in exchange, hire patents, licences, rights privileges for land, tenements, buildings, easements, immovable and moveable property.
- 85 To carry on the business of an investment company and to buy underwrite, invest in and acquire and hold shares, stocks, debentures, debenture-stock, bonds, obligations and securities issued or guaranteed by any company constituted or

carrying on business in India and/or out of India any debentures, debenture stock, bonds, obligations and securities, issued or guaranteed by any Government, State, Dominion, Sovereign, Ruler, Commissioners, public body or authority supreme, municipal, local or otherwise, firm or person and to deal with and turn to account the same provided always that no investment imposing unlimited liability on the Company shall be made.

- 86 To buy, sell, alter, repair, exchange, deal in and finance the sale of furniture, office equipment apparatus, machinery, materials goods, and articles of every description, to hire out or sell any of the same on the hire purchase system and to carry out by contract or otherwise any work connected therewith.
- 87 To carry on the business of stationers, printers, lithographers, phonographers, stereographers, stereotypers, photographic printers, photo lithographic printers, photo lithographers, chromo lithoengravers, block makers, diesinkers, envelope manufacturers, book binders designers, account-book manufacturers machine rulers, numerical printers, paper makers, paper bag and account book makers, box makers, cardboard manufacturers, playing card manufacturers, type founders, photographers, manufactures of and dealers in plying, visiting, railway, festive, complimentary and fancy cards and tickets and valentines, dealers in parchment, designers, manufacturers and dealers in stamps, agents for the payment of stamps and other duties, book sellers, publishers paper manufacturers and dealers in materials used in the manufacture of ink and paper photographic materials, engineers and dealers in or manufacturers of any other articles or things of a charter similar or analogues to the foregoing or any of them or connected therewith.
- 88 To establish and maintain or procure the establishment and maintenance of any contributory or non-contributory pension or superannuation funds for the benefit of, and give or procure the giving of donations, gratuities pensions, allowances or emoluments to or creation of trusts for the benefit of any person who are or were at anytime in the employment or service of the Company, or of any company which is a subsidiary of the Company or is allied to or associated with the company or with any such subsidiary company, or who are or were at any time Directors or officers of the company or of any such other company as aforesaid \, and the wives, widows, families and dependants of any such persons, and also establish and subsidise and subscribe to any institutions, associations, clubs or funds calculated to be for the benefit of or to advance the interest and well-being of the Company or of any such other company as aforesaid, and make payments to or towards the insurance of any such person as aforesaid and do any of the matters aforesaid, either alone or in conjunction with any such other company as aforesaid.
- 89 To subscribe or contribute or otherwise to assist or to guarantee money to charitable, benevolent, religious, scientific, national, public or political or any other useful institutions objects or purposes or for any exhibition.
- 90 To make donations to such persons or institution and in such cases either of cash or any other assets as may be thought directly or indirectly conducive to any of the Company's objects or otherwise expedient and in particular to remunerate any person or corporation introducing business of the Company, or for any public, general or other objects and to establish and support or aid in the establishment and support of associations, institutions, funds, trusts and convenience for the benefit of the employees or ex-employees (including Directors) of the Company or its predecessor in business or of persons having dealings with the company or the dependent, relatives or connections of such persons and in particular-friendly or other benefit societies and to grant pensions , allowances, gratuities and bonuses either by way of annual payments or lumpsum and to make payments towards insurance and to form and contribute to provident and benefit fund of or for such persons.
- 91 To manufacture, sell, lease, repair, service, import, export and otherwise deal in and to provide consultancy services for medical and bio-medical instruments and to import and export technical know-how, service and equipment relating to the above.

IV. The liability of the members is limited.

V. **Authorised Share Capital**

"The Authorised Share Capital of the Company is Rs. 40,00,00,000/- (Rupees Forty Crore Only) divided into 3,50,00,000 (Three Crore Fifty Lakh) Equity Shares of Rs.10/- (Rupees Ten) each aggregating to Rs. 35,00,00,000/- (Rupees Thirty-Five Crore Only) and 5,00,000 (Five Lakh Only) Cumulative, Non-convertible, Redeemable Preference Shares of Rs. 100/- (Rupees Hundred) each aggregating to Rs. 5,00,00,000/- (Rupees Five Crore Only), with the rights, privileges or conditions as provided by the Articles of Association of the Company for the time being, with power to increase or reduce its capital and to divide the shares in the capital for the time being into several classes, and to attach thereto respectively such preferential, deferred, qualified or special rights, privileges or conditions as may be permissible by law and as may be determined by or in accordance with the Articles of Association of the Company for the time being in force; and to vary, modify or abrogate any such rights, privileges or conditions in such manner as may be permitted by law and as may be provided by the Articles of Association of the Company for the time being in force”.

We, the several persons whose names and addresses are subscribed are desirous of being formed into a Company in pursuance of this Memorandum of Association, and we respectively agree to take the number of shares in the capital of the Company set opposite our respective names.

Signature, Name, address, description and occupation of each subscriber	Number of Shares taken by each Subscriber	Name, Address, description and occupation of Witness
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Sd/- SHANTILAL N. SONAWALA S/o. Narandas M. Sonawala Sonawala Mansion, 8-C, Dady Seth, 2nd Cross Lane, Babulnath Road, Bombay 400 007 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	<u>WITNESS FOR ALL</u> Sd/- KULDEEP R. SHARMA S/o. Radhakishan P. Sharma 611, Nilanjana Marve Road, Malad (W) BOMBAY 400 064 SERVICE
Sd/- HEMANT S. SONAWALA S/o. Shantilal N. Sonawala 69/A, L. Jagmohandas Marg, Bombay 400 006 INDUSTRIALIST	10(Ten) Equity Shares of Rs.10/- each	
Sd/- PRAVIN R. GANDHI S/o. Ratilal M. Gandhi Fulchand Nivas, Chowpatty Seaface Bombay 400 007 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- GAURANG N. SANGHVI S/o. Nagardas Sanghvi 111 M. G. Road, Bombay 400 023. BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- KIRIT R. GANDHI S/o. Ratilal M. Gandhi Sujata Co-op. Hsg. Society 3rd Floor, Flat No.32 Little Gibbs Road, Bombay 400 006 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- VIKRAM D. SANGHVI S/o. Dhirajlal B. Sanghvi 6, Shangrila 27-A, Carmichael Road Bombay 400 006 SERVICE	10(Ten) Equity Shares of Rs.10/- each	
Sd/- PAULA H. SONAWALA D/o. Hemant S. Sonawala 69/A, L. Jagmohandas Marg, Bombay 400 006	10(Ten) Equity Shares of Rs.10/- each	
	TOTAL 70 (Seventy)	

Dated : the 21st day of June 1991

THE COMPANIES ACT, 2013
COMPANY LIMITED BY SHARES
ARTICLES OF ASSOCIATION
OF
MINDTECK (INDIA) LIMITED

Mindteck (India) Limited has adopted Table F of Schedule I to the Companies Act, 2013, in its entirety, as its Articles of Association. Accordingly, the Articles of Association of the Company which is subject to any exercise of the statutory powers of the Company with reference to the repeal and alteration of, or addition to its regulations by Special Resolution, as prescribed by the Companies Act, 2013, is as under:

Interpretation

I. (1) In these regulations—

- (a) “the Act” means the Companies Act, 2013,
- (b) “the seal” means the common seal of the company.

(2) Unless the context otherwise requires, words or expressions contained in these regulations shall bear the same meaning as in the Act or any statutory modification thereof in force at the date at which these regulations become binding on the company.

Share capital and variation of rights

II. 1. Subject to the provisions of the Act and these Articles, the shares in the capital of the company shall be under the control of the Directors who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par and at such time as they may from time to time think fit.

2. (i) Every person whose name is entered as a member in the register of members shall be entitled to receive within two months after incorporation, in case of subscribers to the memorandum or after allotment or within one month after the application for the registration of transfer or transmission or within such other period as the conditions of issue shall be provided,—

- (a) one certificate for all his shares without payment of any charges; or
- (b) several certificates, each for one or more of his shares, upon payment of twenty rupees for each certificate after the first.

(ii) Every certificate shall be under the seal and shall specify the shares to which it relates and the amount paid-up thereon.

(iii) In respect of any share or shares held jointly by several persons, the company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders.

3. (i) If any share certificate be worn out, defaced, mutilated or torn or if there be no further space on the back for endorsement of transfer, then upon production and surrender thereof to the company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the company and on execution of such indemnity as the company deem adequate, a new certificate in lieu thereof shall be given. Every certificate under this Article shall be issued on payment of twenty rupees for each certificate.

4. Except as required by law, no person shall be recognised by the company as holding any share upon any trust, and the company shall not be bound by, or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share, or any interest in any fractional part of a share, or (except only as by these regulations or by law otherwise provided) any other rights in respect of any share except an absolute right to the entirety thereof in the registered holder.

5. (i) The company may exercise the powers of paying commissions conferred by sub-section (6) of [section 40](#), provided that the rate per cent. or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by that section and rules made thereunder.

(ii) The rate or amount of the commission shall not exceed the rate or amount prescribed in rules made under sub-section (6) of [section 40](#).

(iii) The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.

6. (i) If at any time the share capital is divided into different classes of shares, the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may, subject to the provisions of [section 48](#), and whether or not the company is being wound up, be varied with the consent in writing of the holders of three-fourths of the issued shares of that class, or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class.

(ii) To every such separate meeting, the provisions of these regulations relating to general meetings shall mutatis mutandis apply, but so that the necessary quorum shall be at least two persons holding at least one-third of the issued shares of the class in question.

7. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking *pari passu* therewith.

8. Subject to the provisions of [section 55](#), any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are to be redeemed on such terms and in such manner as the company before the issue of the shares may, by special resolution, determine.

Lien

9. (i) The company shall have a first and paramount lien—

(a) on every share (not being a fully paid share), for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share; and

(b) on all shares (not being fully paid shares) standing registered in the name of a single person, for all monies presently payable by him or his estate to the company:

Provided that the Board of directors may at any time declare any share to be wholly or in part exempt from the provisions of this clause.

(ii) The company's lien, if any, on a share shall extend to all dividends payable and bonuses declared from time to time in respect of such shares.

10. The company may sell, in such manner as the Board thinks fit, any shares on which the company has a lien:

Provided that no sale shall be made—

(a) unless a sum in respect of which the lien exists is presently payable; or

(b) until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or the person entitled thereto by reason of his death or insolvency.

11. (i) To give effect to any such sale, the Board may authorise some person to transfer the shares sold to the purchaser thereof.

(ii) The purchaser shall be registered as the holder of the shares comprised in any such transfer.

(iii) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.

12. (i) The proceeds of the sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable.

(ii) The residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the shares at the date of the sale.

Calls on shares

13. (i) The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times:

Provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call.

(ii) Each member shall, subject to receiving at least fourteen days' notice specifying the time or times and place of payment, pay to the company, at the time or times and place so specified, the amount called on his shares.

(iii) A call may be revoked or postponed at the discretion of the Board.

14. A call shall be deemed to have been made at the time when the resolution of the Board authorising the call was passed and may be required to be paid by instalments.

15. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.

16. (i) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due shall pay interest thereon from the day appointed for payment thereof to the time of actual payment at ten per cent. per annum or at such lower rate, if any, as the Board may determine.

(ii) The Board shall be at liberty to waive payment of any such interest wholly or in part.

17. (i) Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share or by way of premium, shall, for the purposes of these regulations, be deemed to be a call duly made and payable on the date on which by the terms of issue such sum becomes payable.

(ii) In case of non-payment of such sum, all the relevant provisions of these regulations as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.

18. The Board—

(a) may, if it thinks fit, receive from any member willing to advance the same, all or any part of the monies uncalled and unpaid upon any shares held by him; and

(b) upon all or any of the monies so advanced, may (until the same would, but for such advance, become presently payable) pay interest at such rate not exceeding, unless the company in general meeting shall otherwise direct, twelve per cent. per annum, as may be agreed upon between the Board and the member paying the sum in advance.

Transfer of shares

19. (i) The instrument of transfer of any share in the company shall be executed by or on behalf of both the transferor and transferee.

(ii) The transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof.

20. The Board may, subject to the right of appeal conferred by [section 58](#) decline to register—

(a) the transfer of a share, not being a fully paid share, to a person of whom they do not approve; or

(b) any transfer of shares on which the company has a lien.

21. The Board may decline to recognise any instrument of transfer unless—

(a) the instrument of transfer is in the form as prescribed in rules made under sub-section (1) of [section 56](#);

(b) the instrument of transfer is accompanied by the certificate of the shares to which it relates, and such other evidence as the Board may reasonably require to show the right of the transferor to make the transfer; and

(c) the instrument of transfer is in respect of only one class of shares.

22. On giving not less than seven days' previous notice in accordance with [section 91](#) and rules made thereunder, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine:

Provided that such registration shall not be suspended for more than thirty days at any one time or for more than forty-five days in the aggregate in any year.

Transmission of shares

23. (i) On the death of a member, the survivor or survivors where the member was a joint holder, and his nominee or nominees or legal representatives where he was a sole holder, shall be the only persons recognised by the company as having any title to his interest in the shares. (ii) Nothing in clause (i) shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons.

24. (i) Any person becoming entitled to a share in consequence of the death or insolvency of a member may, upon such evidence being produced as may from time to time properly be required by the Board and subject as hereinafter provided, elect, either—

(a) to be registered himself as holder of the share; or

(b) to make such transfer of the share as the deceased or insolvent member could have made.

(ii) The Board shall, in either case, have the same right to decline or suspend registration as it would have had, if the deceased or insolvent member had transferred the share before his death or insolvency.

25. (i) If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the company a notice in writing signed by him stating that he so elects.

(ii) If the person aforesaid shall elect to transfer the share, he shall testify his election by executing a transfer of the share.

(iii) All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice or transfer were a transfer signed by that member.

26. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the company:

Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the share, and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the share, until the requirements of the notice have been complied with.

27. In case of a One Person Company—

(i) on the death of the sole member, the person nominated by such member shall be the person recognised by the company as having title to all the shares of the member;

(ii) the nominee on becoming entitled to such shares in case of the member's death shall be informed of such event by the Board of the company;

(iii) such nominee shall be entitled to the same dividends and other rights and liabilities to which such sole member of the company was entitled or liable;

(iv) on becoming member, such nominee shall nominate any other person with the prior written consent of such person who, shall in the event of the death of the member, become the member of the company.

Forfeiture of shares

28. If a member fails to pay any call, or instalment of a call, on the day appointed for payment thereof, the Board may, at any time thereafter during such time as any part of the call or instalment remains unpaid, serve a notice on him requiring payment of so much of the call or instalment as is unpaid, together with any interest which may have accrued.

29. The notice aforesaid shall—

(a) name a further day (not being earlier than the expiry of fourteen days from the date of service of the notice) on or before which the payment required by the notice is to be made; and

(b) state that, in the event of non-payment on or before the day so named, the shares in respect of which the call was made shall be liable to be forfeited.

30. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made, be forfeited by a resolution of the Board to that effect.

31. (i) A forfeited share may be sold or otherwise disposed of on such terms and in such manner as the Board thinks fit.

(ii) At any time before a sale or disposal as aforesaid, the Board may cancel the forfeiture on such terms as it thinks fit.

32. (i) A person whose shares have been forfeited shall cease to be a member in respect of the forfeited shares, but shall, notwithstanding the forfeiture, remain liable to pay to the company all monies which, at the date of forfeiture, were presently payable by him to the company in respect of the shares.

(ii) The liability of such person shall cease if and when the company shall have received payment in full of all such monies in respect of the shares.

33. (i) A duly verified declaration in writing that the declarant is a director, the manager or the secretary, of the company, and that a share in the company has been duly forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share;

(ii) The company may receive the consideration, if any, given for the share on any sale or disposal thereof and may execute a transfer of the share in favour of the person to whom the share is sold or disposed of;

(iii) The transferee shall thereupon be registered as the holder of the share; and

(iv) The transferee shall not be bound to see to the application of the purchase money, if any, nor shall his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the forfeiture, sale or disposal of the share.

34. The provisions of these regulations as to forfeiture shall apply in the case of nonpayment of any sum which, by the terms of issue of a share, becomes payable at a fixed time, whether on account of the nominal value of the share or by way of premium, as if the same had been payable by virtue of a call duly made and notified. Alteration of capital.

35. The company may, from time to time, by ordinary resolution increase the share capital by such sum, to be divided into shares of such amount, as may be specified in the resolution.

36. Subject to the provisions of [section 61](#), the company may, by ordinary resolution,—

(a) consolidate and divide all or any of its share capital into shares of larger amount than its existing shares;

(b) convert all or any of its fully paid-up shares into stock, and reconvert that stock into fully paid-up shares of any denomination;

(c) sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the memorandum;

(d) cancel any shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person.

37. Where shares are converted into stock,—

(a) the holders of stock may transfer the same or any part thereof in the same manner as, and subject to the same regulations under which, the shares from which the stock arose might before the conversion have been transferred, or as near thereto as circumstances admit:

Provided that the Board may, from time to time, fix the minimum amount of stock transferable, so, however, that such minimum shall not exceed the nominal amount of the shares from which the stock arose.

(b) the holders of stock shall, according to the amount of stock held by them, have the same rights, privileges and advantages as regards dividends, voting at meetings of the company, and other matters, as if they held the shares from which the stock arose; but no such privilege or advantage (except participation in the dividends and profits of the company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage.

(c) such of the regulations of the company as are applicable to paid-up shares shall apply to stock and the words “share” and “shareholder” in those regulations shall include “stock” and “stock-holder” respectively.

38. The company may, by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law,—

(a) its share capital;

(b) any capital redemption reserve account; or

(c) any share premium account.

Capitalisation of profits

39. (i) The company in general meeting may, upon the recommendation of the Board, resolve—

(a) that it is desirable to capitalise any part of the amount for the time being standing to the credit of any of the company’s reserve accounts, or to the credit of the profit and loss account, or otherwise available for distribution; and

(b) that such sum be accordingly set free for distribution in the manner specified in clause (ii) amongst the members who would have been entitled thereto, if distributed by way of dividend and in the same proportions.

(ii) The sum aforesaid shall not be paid in cash but shall be applied, subject to the provision contained in clause (iii), either in or towards—

(A) paying up any amounts for the time being unpaid on any shares held by such members respectively;

(B) paying up in full, unissued shares of the company to be allotted and distributed, credited as fully paid-up, to and amongst such members in the proportions aforesaid;

(C) partly in the way specified in sub-clause (A) and partly in that specified in sub-clause (B);

(D) A securities premium account and a capital redemption reserve account may, for the purposes of this regulation, be applied in the paying up of unissued shares to be issued to members of the company as fully paid bonus shares;

(E) The Board shall give effect to the resolution passed by the company in pursuance of this regulation.

40. (i) Whenever such a resolution as aforesaid shall have been passed, the Board shall—

(a) make all appropriations and applications of the undivided profits resolved to be capitalised thereby, and all allotments and issues of fully paid shares if any; and

(b) generally do all acts and things required to give effect thereto.

(ii) The Board shall have power—

(a) to make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as it thinks fit, for the case of shares becoming distributable in fractions; and

(b) to authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the company providing for the allotment to them respectively, credited as fully paid-up, of any further shares to which they may be entitled upon such capitalisation, or as the case may require, for the payment by the company on their behalf, by the application thereto of their respective proportions of profits resolved to be capitalised, of the amount or any part of the amounts remaining unpaid on their existing shares;

(iii) Any agreement made under such authority shall be effective and binding on such members.

Buy-back of shares

41. Notwithstanding anything contained in these articles but subject to the provisions of sections [68](#) to [70](#) and any other applicable provision of the Act or any other law for the time being in force, the company may purchase its own shares or other specified securities.

General Meetings

42. All general meetings other than annual general meeting shall be called extraordinary general meeting.

43. (i) The Board may, whenever it thinks fit, call an extraordinary general meeting.
(ii) If at any time directors capable of acting who are sufficient in number to form a quorum are not within India, any director or any two members of the company may call an extraordinary general meeting in the same manner, as nearly as possible, as that in which such a meeting may be called by the Board.

Proceedings at general meetings

44. (i) No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business.
(ii) Save as otherwise provided herein, the quorum for the general meetings shall be as provided in [section 103](#).

45. The chairperson, if any, of the Board shall preside as Chairperson at every general meeting of the company.

46. If there is no such Chairperson, or if he is not present within fifteen minutes after the time appointed for holding the meeting, or is unwilling to act as chairperson of the meeting, the directors present shall elect one of their members to be Chairperson of the meeting.

47. If at any meeting no director is willing to act as Chairperson or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairperson of the meeting.

48. In case of a One Person Company—

(i) the resolution required to be passed at the general meetings of the company shall be deemed to have been passed if the resolution is agreed upon by the sole member and communicated to the company and entered in the minutes book maintained [under section 118](#);
(ii) such minutes book shall be signed and dated by the member;
(iii) the resolution shall become effective from the date of signing such minutes by the sole member.

Adjournment of meeting

49. (i) The Chairperson may, with the consent of any meeting at which a quorum is present, and shall, if so directed by the meeting, adjourn the meeting from time to time and from place to place.
(ii) No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
(iii) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.
(iv) Save as aforesaid, and as provided in [section 103](#) of the Act, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

Voting rights

50. Subject to any rights or restrictions for the time being attached to any class or classes of shares,—

- (a) on a show of hands, every member present in person shall have one vote; and
- (b) on a poll, the voting rights of members shall be in proportion to his share in the paid-up equity share capital of the company.

51. A member may exercise his vote at a meeting by electronic means in accordance with [section 108](#) and shall vote only once.

52. (i) In the case of joint holders, the vote of the senior who tenders a vote, whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders.

(ii) For this purpose, seniority shall be determined by the order in which the names stand in the register of members.

53. A member of unsound mind, or in respect of whom an order has been made by any court having jurisdiction in lunacy, may vote, whether on a show of hands or on a poll, by his committee or other legal guardian, and any such committee or guardian may, on a poll, vote by proxy.

54. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.

55. No member shall be entitled to vote at any general meeting unless all calls or other sums presently payable by him in respect of shares in the company have been paid.

56. (i) No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes.

(ii) Any such objection made in due time shall be referred to the Chairperson of the meeting, whose decision shall be final and conclusive.

Proxy

57. The instrument appointing a proxy and the power-of-attorney or other authority, if any, under which it is signed or a notarised copy of that power or authority, shall be deposited at the registered office of the company not less than 48 hours before the time for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote, or, in the case of a poll, not less than 24 hours before the time appointed for the taking of the poll; and in default the instrument of proxy shall not be treated as valid.

58. An instrument appointing a proxy shall be in the form as prescribed in the rules made [under section 105](#).

59. A vote given in accordance with the terms of an instrument of proxy shall be valid, notwithstanding the previous death or insanity of the principal or the revocation of the proxy or of the authority under which the proxy was executed, or the transfer of the shares in respect of which the proxy is given:

Provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the company at its office before the commencement of the meeting or adjourned meeting at which the proxy is used.

Board of Directors

60. The number of the directors and the names of the first directors shall be determined in writing by the subscribers of the memorandum or a majority of them.

61. (i) The remuneration of the directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day-to-day.

(ii) In addition to the remuneration payable to them in pursuance of the Act, the directors may be paid all travelling, hotel and other expenses properly incurred by them—

(a) in attending and returning from meetings of the Board of Directors or any committee thereof or general meetings of the company; or

(b) in connection with the business of the company.

62. The Board may pay all expenses incurred in getting up and registering the company.

63. The company may exercise the powers conferred on it by [section 88](#) with regard to the keeping of a foreign register; and the Board may (subject to the provisions of that section) make and vary such regulations as it may think fit respecting the keeping of any such register.

64. All cheques, promissory notes, drafts, hundis, bills of exchange and other negotiable instruments, and all receipts for monies paid to the company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine.

65. Every director present at any meeting of the Board or of a committee thereof shall sign his name in a book to be kept for that purpose.

66. (i) Subject to the provisions of [section 149](#), the Board shall have power at any time, and from time to time, to appoint a person as an additional director, provided the number of the directors and additional directors together shall not at any time exceed the maximum strength fixed for the Board by the articles.

(ii) Such person shall hold office only up to the date of the next annual general meeting of the company but shall be eligible for appointment by the company as a director at that meeting subject to the provisions of the Act.

Proceedings of the Board

67. (i) The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit.

(ii) A director may, and the manager or secretary on the requisition of a director shall, at any time, summon a meeting of the Board.

68. (i) Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes.

(ii) In case of an equality of votes, the Chairperson of the Board, if any, shall have a second or casting vote.

69. The continuing directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing directors or director may act for the purpose of increasing the number of directors to that fixed for the quorum, or of summoning a general meeting of the company, but for no other purpose.

70. (i) The Board may elect a Chairperson of its meetings and determine the period for which he is to hold office.

(ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the directors present may choose one of their number to be Chairperson of the meeting.

71. (i) The Board may, subject to the provisions of the Act, delegate any of its powers to committees consisting of such member or members of its body as it thinks fit.
(ii) Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.

72. (i) A committee may elect a Chairperson of its meetings.
(ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting.

73. (i) A committee may meet and adjourn as it thinks fit.
(ii) Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present, and in case of an equality of votes, the Chairperson shall have a second or casting vote.

74. All acts done in any meeting of the Board or of a committee thereof or by any person acting as a director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director.

75. Save as otherwise expressly provided in the Act, a resolution in writing, signed by all the members of the Board or of a committee thereof, for the time being entitled to receive notice of a meeting of the Board or committee, shall be valid and effective as if it had been passed at a meeting of the Board or committee, duly convened and held.

76. In case of a One Person Company—

- (i) where the company is having only one director, all the businesses to be transacted at the meeting of the Board shall be entered into minutes book maintained [under section 118](#);
- (ii) such minutes book shall be signed and dated by the director;
- (iii) the resolution shall become effective from the date of signing such minutes by the director.

Chief Executive Officer, Manager, Company Secretary or Chief Financial Officer

77. Subject to the provisions of the Act,—

- (i) A chief executive officer, manager, company secretary or chief financial officer may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any chief executive officer, manager, company secretary or chief financial officer so appointed may be removed by means of a resolution of the Board;
- (ii) A director may be appointed as chief executive officer, manager, company secretary or chief financial officer.

78. A provision of the Act or these regulations requiring or authorising a thing to be done by or to a director and chief executive officer, manager, company secretary or chief financial officer shall not be satisfied by its being done by or to the same person acting both as director and as, or in place of, chief executive officer, manager, company secretary or chief financial officer.

The Seal

- 79. (i) The Board shall provide for the safe custody of the seal.
- (ii) The seal of the company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf, and except in the presence of at least two directors and of the secretary or such other person as the Board may appoint for the purpose; and those two directors and the secretary or other person aforesaid shall sign every instrument to which the seal of the company is so affixed in their presence.

Dividends and Reserve

80. The company in general meeting may declare dividends, but no dividend shall exceed the amount recommended by the Board.

81. Subject to the provisions of [section 123](#), the Board may from time to time pay to the members such interim dividends as appear to it to be justified by the profits of the company.

82. (i) The Board may, before recommending any dividend, set aside out of the profits of the company such sums as it thinks fit as a reserve or reserves which shall, at the discretion of the Board, be applicable for any purpose to which the profits of the company may be properly applied, including provision for meeting contingencies or for equalising dividends; and pending such application, may, at the like discretion, either be employed in the business of the company or be invested in such investments (other than shares of the company) as the Board may, from time to time, thinks fit.

(ii) The Board may also carry forward any profits which it may consider necessary not to divide, without setting them aside as a reserve.

83. (i) Subject to the rights of persons, if any, entitled to shares with special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid, but if and so long as nothing is paid upon any of the shares in the company, dividends may be declared and paid according to the amounts of the shares.

(ii) No amount paid or credited as paid on a share in advance of calls shall be treated for the purposes of this regulation as paid on the share.

(iii) All dividends shall be apportioned and paid proportionately to the amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms providing that it shall rank for dividend as from a particular date such share shall rank for dividend accordingly.

84. The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the company on account of calls or otherwise in relation to the shares of the company.

85. (i) Any dividend, interest or other monies payable in cash in respect of shares may be paid by cheque or warrant sent through the post directed to the registered address of the holder or, in the case of joint holders, to the registered address of that one of the joint holders who is first named on the register of members, or to such person and to such address as the holder or joint holders may in writing direct.

(ii) Every such cheque or warrant shall be made payable to the order of the person to whom it is sent.

86. Any one of two or more joint holders of a share may give effective receipts for any dividends, bonuses or other monies payable in respect of such share.

87. Notice of any dividend that may have been declared shall be given to the persons entitled to share therein in the manner mentioned in the Act.

88. No dividend shall bear interest against the company.

Accounts

89. (i) The Board shall from time to time determine whether and to what extent and at what times and places and under what conditions or regulations, the accounts and books of the company, or any of them, shall be open to the inspection of members not being directors.
- (ii) No member (not being a director) shall have any right of inspecting any account or book or document of the company except as conferred by law or authorised by the Board or by the company in general meeting.

Winding up

90. Subject to the provisions of Chapter XX of the Act and rules made thereunder—
- (i) If the company shall be wound up, the liquidator may, with the sanction of a special resolution of the company and any other sanction required by the Act, divide amongst the members, in specie or kind, the whole or any part of the assets of the company, whether they shall consist of property of the same kind or not.
- (ii) For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members.
- (iii) The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories if he considers necessary, but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.

Indemnity

91. Every officer of the company shall be indemnified out of the assets of the company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in which relief is granted to him by the court or the Tribunal.

We, the several persons, whose names, addresses and descriptions are hereunder subscribed, are desirous of being formed into a Company in pursuance of these Articles of Association and we respectively agree to take the number of shares in the Capital of the Company set opposite to our names:

Signature, Name, address, description and occupation of each subscriber	Number of Shares taken by each Subscriber	Name, Address, description and occupation of Witness
Sd/- SHANTILAL N. SONAWALA S/o. Narandas M. Sonawala Sonawala Mansion, 8-C, Dady Seth, 2nd Cross Lane, Babulnath Road, Bombay 400 007 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	<u>WITNESS FOR ALL</u> Sd/- KULDEEP R. SHARMA S/o. Radhakishan P. Sharma 611, Nilanjana Marve Road, Malad (W) BOMBAY 400 064 SERVICE
Sd/- HEMANT S. SONAWALA S/o. Shantilal N. Sonawala 69/A, L. Jagmohandas Marg, Bombay 400 006 INDUSTRIALIST	10(Ten) Equity Shares of Rs.10/- each	
Sd/- PRAVIN R. GANDHI S/o. Ratilal M. Gandhi Fulchand Nivas, Chowpatty Seaface Bombay 400 007 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- GAURANG N. SANGHVI S/o. Nagardas Sanghvi 111 M. G. Road, Bombay 400 023. BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- KIRIT R. GANDHI S/o. Ratilal M. Gandhi Sujata Co-op. Hsg. Society 3rd Floor, Flat No.32 Little Gibbs Road, Bombay 400 006 BUSINESS	10(Ten) Equity Shares of Rs.10/- each	
Sd/- VIKRAM D. SANGHVI S/o. Dhirajlal B. Sanghvi 6, Shangrila 27-A, Carmichael Road Bombay 400 006 SERVICE	10(Ten) Equity Shares of Rs.10/- each	
Sd/- PAULA H. SONAWALA D/o. Hemant S. Sonawala 69/A, L. Jagmohandas Marg, Bombay 400 006	10(Ten) Equity Shares of Rs.10/- each	
TOTAL 70 (Seventy)		

Dated : the 21st day of June 1991